

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430
Respondent, Pro Se.

**MOTION TO ADJOURN THE
SEPTEMBER 11, 2026 HEARING**

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I. RELIEF SOUGHT

Respondent moves to adjourn the risk-level classification hearing currently scheduled for September 11, 2026, to a date sufficient to permit resolution of Respondent's contemporaneously filed Application for Assignment of Counsel, production of the materials sought in Respondent's contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and reasonable time for counsel to review those materials and prepare.

II. STATEMENT OF FACTS

Respondent has, contemporaneously with this motion, filed an Application for Assignment of Counsel, noting that the August 4, 2026 counsel-status deadline set by the Court's July 30, 2026 notice letter has passed. Respondent mailed the counsel-status form himself, indicating his request for assigned counsel, but as of the date of this motion has no confirmation that it has been received or processed, and no assigned counsel has yet been confirmed. Given ordinary mail transit time on top of the processing and assignment process itself, the practical window remaining for any newly assigned counsel to review this matter and meaningfully consult with Respondent before September 11, 2026 is short and shrinking, independent of whatever materials are produced in response to the accompanying Demand for Disclosure.

Respondent has also, contemporaneously with this motion, served a Demand for Disclosure and, if necessary, Subpoena Duces Tecum, identifying a genuine dispute concerning the determinations in the Board of Examiners of Sex Offenders' Recommendation Package and demanding, among other things, both federal Presentence Investigation Reports the Case Summary draws from, the Board's June 1, 2012 Position Statement, the 2012 and 2018 judgments of conviction, polygraph-related materials, and Board-probation communications concerning Respondent.

Correction Law § 168-n(3) requires that Board recommendation materials be provided at least twenty days before the hearing. Even accounting for that window, the volume and nature of the material demanded — including two federal PSRs or, at minimum, the specific portions of each that the Board's Case Summary relies on — make it unlikely that all demanded materials can be produced, reviewed, and incorporated into hearing preparation by September 11, 2026, particularly if any item must be obtained by subpoena rather than voluntary production.

III. ARGUMENT

A. Correction Law § 168-n(3)'s Own Adjournment Clause Requires Adjournment Where There Is a Genuine Dispute Requiring Materials to Be Obtained

Correction Law § 168-n(3) provides: "Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party."

This clause is mandatory — "the court shall adjourn," not "may adjourn" — once a genuine dispute concerning the Board's determinations exists and materials relevant to that dispute must be obtained. Respondent's accompanying Demand for Disclosure and Subpoena Duces Tecum identifies exactly that dispute and demands exactly those materials. Adjournment is necessary here for the reason the statute itself contemplates: the demanded materials will not be in hand, let alone

reviewed, by September 11, 2026, particularly to the extent production requires a subpoena rather than voluntary compliance.

B. The General Adjournment-Discretion Standard Also Supports Adjournment

Independent of § 168-n(3)'s own mandatory clause, New York courts weigh, in deciding an adjournment request of this kind, whether the evidence sought is material, whether the request is made in good faith rather than for purposes of delay, and whether the need for adjournment results from the movant's own lack of diligence. New York applies this standard in the SORA context specifically. *See People v. Eldridge*, 2024 NY Slip Op 05117 (App. Div., 2d Dep't Oct. 16, 2024) (reversing denial of an adjournment sought so newly consulted counsel could review documents that could affect the respondent's classification, and holding that an imminent release date was not a sufficient reason to deny the request).

The materials demanded here bear directly on the reliability of the Case Summary's factual assertions and, through them, on the risk-level determination itself; the request is made to permit counsel and Respondent a genuine opportunity to test the Board's Recommendation Package, not to delay the proceeding; and the need for the adjournment arises from the compressed timeline created by the recent passage of the counsel-status deadline and the volume of material that must still be obtained, not from any lack of diligence on Respondent's part.

C. Newly Assigned Counsel Needs Both Time and the Demanded Records to Prepare

If the Court grants Respondent's Application for Assignment of Counsel, newly assigned counsel will need adequate time to become familiar with the record and to review whatever materials are produced or subpoenaed in response to the accompanying Demand for Disclosure before counsel can meaningfully represent Respondent at a contested classification hearing. Assignment on the eve of the hearing, with no realistic opportunity to review the record or the materials sought above, would make the assignment a formality rather than the meaningful representation Correction Law § 168-n(3) contemplates. An adjournment here is necessary to

avoid exactly that outcome — assigning counsel and demanding materials on a timeline that affords no realistic opportunity to use either before September 11, 2026.

D. A Short Adjournment Causes No Identified Prejudice to the People's Notification Interest

The People's interest that ordinarily counsels against adjournment in a SORA proceeding is the public-safety and community-notification interest reflected in the statute's own hearing notice, which warns that failure to appear "may result in a longer period of registration or a higher level of community notification." A short adjournment here does not implicate that interest. Respondent has maintained his sex-offender registration continuously since his 2018 conviction — on his own representation, including during a period of incarceration in a New Jersey facility when he was not legally required to do so — and his current registration and whereabouts remain a matter of record independent of when this hearing concludes. A brief adjournment sufficient to permit counsel assignment and document production leaves that record unchanged.

IV. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court adjourn the September 11, 2026 hearing to a date sufficient to permit (1) resolution of the pending Application for Assignment of Counsel; (2) production of the materials demanded in the accompanying Demand for Disclosure and Subpoena Duces Tecum, and execution of any subpoena duces tecum found necessary; and (3) reasonable time for assigned counsel to review those materials and prepare for a contested hearing; and for such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

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